Syllabus

LANDOR *v.* LOUISIANA DEPARTMENT OF CORRECTIONS AND PUBLIC SAFETY ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 23–1197. Argued November 10, 2025—Decided June 23, 2026

The Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA) was enacted pursuant to Congress's Spending Clause authority and imposes various conditions on federal funds distributed to state prison systems like the Louisiana Department of Corrections (LDOC). One condition requires state prison systems to agree to answer federal suits by private plaintiffs alleging certain substantial burdens on their religious exercises. See 42 U. S. C. §§2000cc–1(a), (b)(1). Relying on that provision, inmate Damon Landor brought this RLUIPA lawsuit against LDOC as well as some of the prison system's individual officers in their personal capacities, seeking damages from them. Mr. Landor is a Rastafarian whose religious convictions require him to leave his hair uncut. He claims that LDOC officers—despite being aware of his religious beliefs—forcibly shaved his head. The officers moved to dismiss, arguing that while their employer LDOC may have agreed to answer certain private suits under RLUIPA, they were not parties to any such agreement, and therefore Mr. Landor had no federal cause of action against them. The district court dismissed Mr. Landor's RLUIPA claims against both the officers and LDOC. On appeal, Mr. Landor challenged only the dismissal of his claim against the individual officers. The Fifth Circuit declined to revive that portion of his suit, holding that RLUIPA does not permit suits against officers in their individual capacities.

Held: Individuals may not be held liable in their personal capacities under a Spending Clause statute unless those individuals have voluntarily and knowingly consented to answer lawsuits under the statute; because the individual defendants in this case did not voluntarily and knowingly consent to face RLUIPA liability in an agreement with the federal government, Mr. Landor's case cannot proceed against them. Pp. 65–80.

(a) While the Constitution's "Spending Clause," Art. I, §8, cl. 1, may confer on Congress the power to spend money for the general welfare, it does not "endow Congress with [any] power to regulate conduct." *Medina* v. *Planned Parenthood South Atlantic*, 606 U. S. 357, 370. Congress may attach conditions to the funds it distributes, and if a recipient "violates those conditions," Congress typically may "terminate" its agreement to provide funds. *Id.*, at 365–366 (internal quotation marks

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omitted). But Congress cannot dictate whatever other sanctions it might wish for violating conditions found in its Spending Clause legislation. Additional sanctions are permissible only with the "voluntar[y] and knowin[g]" consent of those who must bear them. *Pennhurst State School and Hospital* v. *Halderman*, 451 U. S. 1, 17. To sort out whether consent exists, the Court has traditionally employed a "contract analogy" that helps to ensure conditions attached to federal funds—including those prescribing exposure to potential sanctions—apply only to those who have knowingly and voluntarily agreed to them. Pp. 65–70.

(b) These settled principles resolve this case. Before this Court, LDOC does not dispute that it is a recipient of federal funds and has agreed to answer certain RLUIPA suits as a condition of accepting those funds. But this case involves only claims against individual state employees in their personal capacities, and Mr. Landor does not allege that any of those individuals has entered any agreement with the federal government, let alone that any of them has voluntarily and knowingly consented to answer private suits under RLUIPA. Because they never agreed to answer suits like this one, Mr. Landor's case cannot proceed against them any more than a breach of contract action might proceed against a defendant who never formed a contract. Pp. 69–70.

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(c) Mr. Landor's arguments are all variations on the theme that the lack of voluntary and knowing consent does not matter. And they all fail for that reason. Under the Spending Clause and the Court's precedents, the consent requirement is key. Pp. 70–79.

(1) Mr. Landor invokes agency law, arguing that LDOC employees may be held liable because they are LDOC's agents. But as a matter of blackletter law, when a principal enters a contract with a third party, the principal's agents do not become liable to the third party for their principal's nonperformance. LDOC might be subject to certain private suits under RLUIPA if it breaches its promises to the federal government, but it does not follow that LDOC's employees are as well. Pp. 70–72.

(2) Mr. Landor next turns to *South Dakota* v. *Dole*, 483 U. S. 203, arguing that his proposed cause of action satisfies *Dole*'s four requirements and therefore satisfies the Spending Clause too. But *Dole*'s requirements apply in addition to—not instead of—the rule that Congress may not use the Spending Clause to bind entities and individuals without their knowing and voluntary consent. *Dole* itself added a fifth rule barring compulsion and reaffirmed the clear-statement rule, both of which serve to ensure real consent exists. Mr. Landor also argues that RLUIPA's mere existence sufficed to alert the individual defendants that they could be held personally liable. This argument fares no bet-

ter. A Spending Clause statute assumes binding effect only through "voluntar[y] and knowin[g]" agreement, which is lacking here. *Pennhurst*, 451 U. S., at 17. Pp. 72–73.

(3) Mr. Landor next turns to the fungibility of money, contending that the individual defendants are indirect recipients of federal funds because they receive paychecks from LDOC. But this argument would mean that so long as a penny of federal spending makes its way to an individual, Congress could directly regulate his conduct based on the fiction that he has consented to regulation. This is inconsistent with the requirement of knowing and voluntary consent, and it would give Congress an effectively unbridled police power impossible to square with the Spending Clause's terms or our precedents. Pp. 74–75.

(4) Mr. Landor's reliance on the Necessary and Proper Clause and *Sabri* v. *United States*, 541 U. S. 600, is misplaced. In *Sabri*, the Court held that Congress's criminal ban on theft, fraud, or bribery against a federal funding recipient is a necessary and proper incident to Congress's authority to spend money. *Id.*, at 605–606. Mr. Landor contends that his proposed cause of action is likewise incidental to RLUIPA's policy protecting religious exercises. But Mr. Landor is answering the wrong question. The correct question is instead whether such a cause of action is a necessary and proper incident to Congress's enumerated power to spend money. Suits against nonconsenting parties like the individual officers here might advance RLUIPA's policy but do not safeguard federal funds from being "frittered away in graft." *Id.*, at 605. Adopting Mr. Landor's proposed cause of action would allow Congress to evade the consent requirement inherent in its Spending Clause authority and regulate directly the conduct of countless nonconsenting individuals in spheres traditionally reserved to the States. Such a result would be inconsistent with principles of state sovereignty and a federal government of limited and enumerated regulatory powers. Pp. 77–79.

82 F. 4th 337, affirmed.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, KAVANAUGH, and BARRETT, JJ., joined. JACKSON, J., filed a dissenting opinion, in which SOTOMAYOR and KAGAN, JJ., joined, *post*, p. 80.

Zachary D. Tripp argued the cause for petitioner. With him on the briefs were *Joshua M. Wesneski*, *Rachael E. Jones*, *Laurel L. Zigerelli*, *Sarah M. Sternlieb*, and *Casey Denson*.

Libby A. Baird argued the cause for the United States as *amicus curiae* urging reversal. With her on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Deputy Solicitor General Harris*, *Principal Deputy Assistant Attorney General Osete*, *Andrew G. Braniff*, and *Yael Bortnick*.

J. Benjamin Aguiñaga, Solicitor General of Louisiana, argued the cause for respondents. With him on the brief were *Elizabeth B. Murrill*, Attorney General of Louisiana, *Zachary Faircloth*, Principal Deputy Solicitor General, *Morgan Brungard* and *Kelsey L. Smith*, Deputy Solicitors General, and *Caitlin A. Huettemann* and *Elizabeth Brown*, Assistant Solicitors General.*

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*Briefs of *amici curiae* urging reversal were filed for Agudath Israel of America by *Benjamin L. Mesches*, *Michael F. Qian*, and *Mark G. Davis*; for the American Association for Justice by *Robert S. Peck*, *Bruce Plaxen*, and *Jeffrey R. White*; for the American Center for Law and Justice by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, and *Walter M. Weber*; for The Becket Fund for Religious Liberty by *Daniel L. Chen* and *Amanda L. Salz*; for the Bruderhof et al. by *John A. Meiser* and *Meredith H. Kessler*; for the Christian Legal Society et al. by *Steven T. McFarland*, *Laura Nammo*, *Douglas Laycock*, and *Thomas C. Berg*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for Former Correctional Officials by *Scott H. Angstreich*, *Daren G. Zhang*, and *Abigail E. DeHart*; for the Hindu American Foundation by *Christopher S. Ross*; for Major Religious Denominations by *Gene C. Schaerr*; for the National Police Accountability Project by *Jim Davy*; for Rastafari Scholars by *Charles A. Rothfeld* and *Eric A. White*; for Religious and Civil-Rights Organizations by *Alexandra Zaretsky* and *Alex J. Luchenitser*; for Rights Behind Bars et al. by *Elizabeth R. Moulton*; for Seven Religious-Liberty Scholars by *Joshua C. McDaniel*; for the Union of Orthodox Jewish Congregations of America by *Gordon D. Todd*, *Dino L. LaVerghetta*, and *Nathan J. Diament*; for Denny Autrey et al. by *Richard D. Salgado*, *Kelly J. Shackelford*, *Jeffrey C. Mateer*, *Hiram S. Sasser III*, and *David J. Hacker*; for Sen. Ted Cruz et al. by *Conor R. Harvey* and *Eric B. Boettcher*; for Byron R. Johnson by *Noel J. Francisco*, *David T. Raimer*, and *Eric C. Rassbach*; and for 44 Religious Organizations by *Adeel Mangi*.

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Briefs of *amici curiae* were filed for the National Congress of American Indians et al. by *Joel West Williams*, *Gabriel Galanda*, *Jacqueline De*

JUSTICE GORSUCH delivered the opinion of the Court.

This case concerns whether the Religious Land Use and Institutionalized Persons Act of 2000 permits plaintiffs to sue nonconsenting state employees in their private capacities for damages.

I

Today, Congress offers financial support to all 50 States and many other entities. Much of that support comes with strings attached. So, for example, Congress has conditioned receipt of federal highway funds on a State's agreement to maintain laws setting a minimum drinking age of 21. See *South Dakota* v. *Dole*, 483 U. S. 203 (1987). Likewise, Congress has conditioned federal Medicaid funds on a State's willingness to administer its healthcare programs consistent with various rules. See *Medina* v. *Planned Parenthood South Atlantic*, 606 U. S. 357, 362–364 (2025). In each of these contexts and many others, the penalty for noncompliance is straightforward: Congress may "terminate funds" if a recipient fails to abide by the conditions associated with its grants. *Id.*, at 365–366 (internal quotation marks omitted).

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The statute at issue before us, the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA), works similarly. As relevant here, RLUIPA imposes various conditions on federal funds distributed to state prison systems like the Louisiana Department of Corrections (LDOC). One condition requires prison systems to refrain from imposing "substantial burden[s] on the religious exercise[s]" of state prisoners outside exceptional circumstances. See 42 U. S. C. §§2000cc–1(a), (b)(1); see also Tr. of Oral Arg. 60. If a prison system fails to comply with that condition, Congress may cut off its funding.

But when enacting RLUIPA, Congress did something more: It included another, distinct remedy as part of the

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León, and *Kaitlyn E. Klass*; and for the National Sheriffs' Association by *Gregory C. Champagne* and *Maurice E. Bostick*.